CONSTITUTIONAL INITIATIVE NO. 132 (CI-132)

BALLOT LANGUAGE:

CONSTITUTIONAL INITIATIVE NO. 132

A CONSTITUTIONAL AMENDMENT PROPOSED BY INITIATIVE PETITION

CI-132 amends the Montana Constitution to require that judicial elections remain nonpartisan.

[] YES on Constitutional Amendment CI-132
[] NO on Constitutional Amendment CI-132

COMPLETE TEXT:

BE IT ENACTED BY THE PEOPLE OF THE STATE OF MONTANA:

NEW SECTION. **Section 1.** Article VII of The Constitution of the State of Montana is amended by adding a new section 12 that reads:

Section 12. Nonpartisan Judicial Elections. Judicial elections shall remain nonpartisan.

ARGUMENTS FOR CI-132:

Judges should be elected based on their record and qualifications, not politics.
Constitutional Initiative 132 protects the high value we as Montanans place on impartial judges free from political influence. **CI-132 is a one-sentence initiative that simply ensures that judicial elections in Montana remain nonpartisan.**

CI-132 helps everyday Montanans.
Most Montanans interact with judges in family, traffic, civil, and criminal courts, which decide everything from child custody to employment and property disputes. There is no Republican or Democratic way to handle these cases – there's only the law. Mixing politics with these everyday cases will hurt Montanans who just want an unbiased, fair hearing without worrying about politics influencing the judge's decision.

CI-132 protects the impartiality of our judges and our courts.
Politicians in Helena recently passed House Bill 39, a law allowing political parties to contribute up to nearly $90,000 to Montana judicial candidates. That's a dangerous step toward making judges cater to political parties. Politics today runs on money, and we need to protect our courtrooms. **We need independent courts with judges who remain impartial and accountable to the constitution, not politics.**

CI-132 has broad support.
Nine retired members of the Montana Supreme Court are backing this proposal alongside Montana legal experts, retired sheriffs, and criminal prosecutors. More than 100,000 Montanans from every county signed the petition to get this issue on the ballot. Montanans know that we must keep the power over our courts in the hands of Montana citizens and ensure our judges are fair, unbiased, and accountable to us.

CI-132 keeps judges accountable to Montanans.
Montanans began electing judges in nonpartisan elections in 1935 in response to the powerful Copper Kings who were buying judges to rule in their favor. This simple measure protects that longstanding tradition so we can keep judges accountable to the people's interests, not deep-pocketed political interests.

Vote YES on CI-132 to ensure our judicial elections remain nonpartisan, keep our judges impartial, and make sure politics stays out of our courts.

Approval Committee: *Jeffrey Sherlock, Craig J. Anderson, Katherine "Kitty" Curtis*

ARGUMENTS AGAINST CI-132:

CI-132 is not what it seems. It has nothing to do with keeping courts impartial. Actually, it is an anti-transparency measure.

Have you ever been frustrated by the lack of information about the candidates for judge? That's because the current system—which CI-132 would make permanent—isn't transparent. It forces Montanans to vote with a blindfold on. It prevents us from learning crucial facts about the candidates.

Why would anyone want to do this? According to the authoritative website Ballotpedia, CI-132 is largely funded from out-of-state special interests based in places like New York City and Washington, D.C. They've already spent over $2 million to sell us this bill of goods, and apparently plan to spend a lot more.

Don't let them fool you.

We all want impartial courts, and most judges do try to be impartial. But let's face it: Like most other people, judicial candidates usually have political party preferences. So before we vote, we are entitled to know what those preferences are.

But CI-132 would deny us that information—forever.

Thomas Jefferson said, "Whenever the people are well-informed, they can be trusted with their own government." By contrast, CI-132 enshrines ignorance in the Montana constitution. That's bad for Montana, bad for the justice system, and bad for democracy. The proponents of CI-132 don't trust you with your own government.

Tell the rich out-of-state special interests to pick up their cash and go home. Montanans decide what happens in Montana!

Vote "NO" on CI-132 and let the sun shine in!

***Rejection Committee**: Robert "Rob" Natelson, David Knobel, Derek Oestreicher, Representative Greg Overstreet, Duncan Scott*

PROPONENTS' REBUTTAL OF ARGUMENTS AGAINST CI-132:

Montanans have selected fair and impartial judges in nonpartisan elections for over 90 years. **That's because we believe that judges should be elected based on their record and qualifications, not politics.**

Voting "yes" on CI-132 means Montana citizens can hold judges accountable to "we the people" instead of politics. Our country's founders knew that an independent judiciary was essential for a free republic. CI-132 helps keep our courts independent of the politics that dominate the other branches of government.

Courts should be fair to everyone who stands before them, no matter what they're worth or who they know. But politics today runs on money, and we can't let that into our courtrooms. Justice shouldn't be for sale, and CI-132 helps keep money-driven politics out of our courts.

As two retired District Court judges and a retired Dawson County Sheriff, we know Montana voters aren't fools. There is no Republican or Democratic way to handle cases like child custody, employment, or property disputes - there's only the law and the Constitution. Montana provides voters with an independent judicial performance report about every judicial candidate's experience, courtroom conduct, and decisions. For generations, Montanans have cast their vote based on a judge's record and qualifications – why do opponents want to bring politics into our courts?

Vote YES on CI-132 to:

- **Ensure judges are elected based on their record and qualifications.**
- **Keep money-driven politics out of our courts.**
- **Ensure Montanans can get a fair and impartial trial without worrying about politics.**

Approval Committee: *Jeffrey Sherlock, Craig J. Anderson, Katherine "Kitty" Curtis*

OPPONENTS' REBUTTAL OF ARGUMENTS FOR CI-132:

If you are reading this rebuttal, you are precisely the type of voter that CI-132 seeks to blindfold—an informed voter. The out-of-state special interests pushing CI-132 have spent over $2 million to lock you into a broken system. What are they trying to hide?

They want to hide how these same special interest groups pour money into judicial campaigns.The false "non partisan" label hides this dark money from voters.

The truth is that judges have political leanings. They are human after all. Judges don't transcend ordinary existence and become blind to politics once they put on a black robe. If the out-of-state special interests truly want judges elected based on their record, they would want voters informed about a candidate's entire record—which necessarily includes political leanings. Why do these out-of-state special interests want you to have less information?

The "non partisan" label has not made our state supreme court more impartial. On the contrary, the Montana Supreme Court, among other defects, has been repeatedly identified as biased. Nor is it surprising that former judges and certain attorneys—who have perhaps benefitted from this broken system—would prefer that voters remain uninformed.

Voters like you—who take the time to read about the candidates and issues—should think twice about supporting CI-132. Would you vote while wearing a blindfold? Or, would you prefer to make informed choices about judicial candidates?

Vote "no" on CI-132 and let the sun shine in!

***Rejection Committee**: Robert "Rob" Natelson, David Knobel, Derek Oestreicher, Representative Greg Overstreet, Duncan Scott*

What Your Vote Will Do

YES	A **YES** vote would **APPROVE** amending the Montana Constitution as proposed.
NO	A **NO** vote would make **NO CHANGE** to the current Montana Constitution.